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File No: EXP202204552

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 5, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against WALL BOX CHARGERS S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202204552

IMI Reference: A56ID 388822

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Irish data protection authority on January 28, 2022. The complaint is directed against WALL BOX CHARGERS S.L. with NIF

B66542903 (hereinafter, WALLBOX). The reasons for the complaint are as follows:

The complainant has received several emails from other WALLBOX customers because an employee of WALLBOX copied (CC) them on emails to other customers, and is receiving responses to that initial email. For this reason, the complainant has received data (name and email address) of at least 4 other WALLBOX customers. After this, the complainant contacted WALLBOX and the WALLBOX employee who had copied them on their emails. They received a response from the WALLBOX employee indicating that this was a trivial matter and offering a 10% discount for the inconvenience caused.

Along with the complaint, the following is submitted:

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- Printout of an email sent from the address ***USUARIO.1@wallbox.com to ***USUARIO.2@gmail.com, on January 27, 2022, at 16:41, with the following text:

“Dear EV - Enthusiast,

thank you for your interest in our wallbox chargers.

You reached out to us a few weeks ago because you have questions about our products or you need consulting in general?

If you have questions, please feel free to reach out to me.

I can also offer to call you.

P.S.: With the code: (...) you get a 5% discount on every charger in our Online Shop.

Kind regards”

[Unofficial translation: “Estimado EV- Entusiasta, gracias por tu interés en nuestros cargadores wallbox.

¿Nos contactaste hace unas semanas porque tenías preguntas sobre nuestros productos o necesitas una asesoría general?

Si tienes preguntas, por favor siéntete libre de contactarme.

También te ofrezco llamarte. (...)]

- Printout of an email sent in response to the previous one from the address

***USUARIO.2@gmail.com to ***USUARIO.1@wallbox.com, on January 27, 2022, at 16:41, with the following text:

“After receiving your reply earlier today I have been receiving emails from OTHER WALLBOX

CUSTOMERS. These customers have been trying to reply to Wallbox (i.e. you), but you CC'd me in

your replies and now I am the one receiving responses. You have breached data protection laws and have exposed the personal data of multiple customers including myself. If I was a nefarious person I could have easily exploited this situation to scam or obtain further personal information from other customers including possibly tricking them into sending me money as they think they are contacting Wallbox support.

So far I have received emails from:

B.B.B. - ***USUARIO.3@gmail.com

C.C.C. - ***USUARIO.4@practiceevolve.com

D.D.D. - ***USUARIO.5@gmail.com

E.E.E. - ***USUARIO.6@emmotorsport.com

This is complete negligence on your behalf and you have put the personal information of multiple customers at risk. I will be reporting this to the Data Protection Commission of Ireland. I will also be emailing each of those customers individually to let them know that their information has potentially been compromised. And I would also like this to be escalated to an official complaint with Wallbox as this situation is ridiculous. No doubt you have probably CC'd me in other customers emails also, and I expect that I am going to receive more emails over the coming days from them."

[Unofficial translation: "Después de recibir su respuesta el día de hoy he estado recibiendo correos electrónicos de OTROS CLIENTES DE WALLBOX. Estos clientes han estado tratando...

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to respond to Wallbox (that is, you), but you CC'd me in your responses and now I am the one receiving replies. You have violated data protection laws and exposed the personal data of multiple clients, including myself. If I were a malicious person, I could have easily exploited this situation to scam or obtain more personal information from other clients, possibly even tricking them into sending me money, as they believe they are contacting Wallbox support.

So far, I have received emails from:

B.B.B. - ***USER.3@gmail.com

C.C.C. - ***USER.4@practiceevolve.com.au

D.D.D. - ***USER.5@gmail.com

E.E.E. - ***USER.6@emmotorsport.com

This is total negligence on your part and has put the personal information of multiple clients at risk. I will report this to the Data Protection Commission of Ireland. I will also email each of those clients individually to let them know that their information has been potentially compromised. And I would also like this to be escalated to an official complaint with Wallbox, as this situation is ridiculous. You have undoubtedly probably CC'd me on other emails from clients, and I expect to receive more emails in the coming days from them."]

- Printout of an email sent in response to the previous one from the address ***USER.1@wallbox.com to ***USER.2@gmail.com, on January 28, 2022, at 11:28 AM, with the following text:

"I am so sorry for the inconveniences. This was not intentional.

I used the <> functionality:

BCC, which stands for blind carbon copy, allows you to hide recipients in email messages. Addresses in the To: field and the CC: (carbon copy) field appear in messages, but users cannot see addresses of anyone you included in the BCC: field.

But in any case, you don't need to worry at all, it was just a reminder email to people like yourself to offer help regarding a wallbox. So nothing bad and nothing will happen.

I can only repeat myself: I am sorry, I don't understand how this is possible, honestly. I want to offer you a discount for a wallbox as compensation: 10% with the code: (...)"

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- Printout of an email sent in response to the previous one from the address

***USUARIO.1@wallbox.com to ***USUARIO.2@gmail.com, on January 28, 2022, at 13:40, with the following text:

"Whether it was intentional or not this is a data breach and you have a responsibility to your company and to your customers to report it. If it was an error with your IT systems rather than human error then it should be reported to your IT department to investigate the cause and implement a fix to prevent it from happening again. What exactly are you and your company doing to investigate this and what remedial actions are you taking to prevent this from re-occurring? As I said in my previous email I would like this to be raised as an OFFICIAL COMPLAINT with Wallbox.

The fact that you are brushing this off as "nothing bad" is not very comforting and I don't think you understand the risk to customers that exists with that attitude. And is an especially bad attitude from a company that deals with the day-to-day collection of customer data from the Wallbox app. Whether you use CC or BCC is irrelevant as I now have the NAMES and PERSONAL email addresses of four other Wallbox customers which I should NEVER have access to and they also have access to my own name and personal email which additionally put myself at risk.

As I explained in my previous email, under different circumstances this situation could have been exploited to get further personal information or even be used to defraud customers by posing as Wallbox Support. I work in an organization that deals with cyber security issues just like this and I know for a fact that that kind of risk is very real."

[Unofficial translation:

"Independientemente de si fue intencionado o no, esto es una violación de datos y usted tiene la responsabilidad con su empresa y con sus clientes de informarlo. Si fue un error con sus sistemas de TI en lugar de un error humano, entonces debe informarse a su departamento de TI para investigar la causa e implementar una solución para evitar que vuelva a suceder. ¿Qué están haciendo exactamente usted y su compañía para investigar esto y qué medidas correctivas está tomando para evitar que esto vuelva a ocurrir? Como dije en mi correo anterior me gustaría que esto se planteara como una QUEJA OFICIAL a Wallbox.

El hecho de que estés descartando esto como «nada malo» no es muy reconfortante y no creo que entiendas el riesgo para los clientes que existe con esa actitud. Y es una actitud especialmente mala de una empresa que se ocupa de la recopilación diaria de datos de clientes desde la aplicación Wallbox. Ya sea que use CC o BCC es irrelevante, ya que ahora tengo las direcciones de correo electrónico PERSONAL y NOMBRES de otros cuatro clientes de Wallbox a los que nunca debería tener acceso y ellos también tienen acceso a mi propio nombre y correo electrónico personal que, además, me pone en riesgo.

Como expliqué en mi correo electrónico anterior, en diferentes circunstancias esta situación podría haber sido explotada para obtener más información personal o incluso para defraudar a los clientes haciéndose pasar por el servicio de atención al cliente de Wallbox. Trabajo en una organización que se ocupa de problemas de seguridad cibernética como este y sé a ciencia cierta que ese tipo de riesgo es muy real."]

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012, of the European Parliament

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and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among member states, and the exchange of information, the aforementioned complaint was transmitted on April 13, 2022, and was registered with the Spanish Agency for Data Protection (AEPD) on April 18, 2022. The transfer of this complaint to the

AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679, of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that WALLBOX has its registered office and main establishment in Spain.

The data processing carried out affects individuals in several member states. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the data protection authority of Ireland, the authorities of Sweden, Austria, the Netherlands, Belgium, Poland, France, Estonia, Italy, Slovakia, and the German authorities of Rhineland-Palatinate and Berlin. All of them under Article 4.22 of the GDPR, given that the individuals residing in the territory of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On June 8, 2022, in accordance with the then-applicable Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: On November 16, 2022, the AEPD requested, through the IMI System, the data protection authority of Ireland to have the complainant provide the original emails that were sent to other clients and to him as well (the emails that gave rise to this complaint).

The data protection authority of Ireland shared the requested documentation via IMI on January 9, 2023.

FIFTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points: On December 5, 2022, a document was submitted to the AEPD on behalf of WALLBOX in response to a request for information (this request for information was accessed by WALLBOX on November 21, 2022), with entry registration number ***REGISTRO.1, in which the following information was provided, among others:

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1. Statement that the causes of the incident described by the claiming party "are due to human error in the normal use of the BCC (Blind Carbon Copy) functionality in sending emails. In this specific case, a person from the pre-sales team used the contact details of various individuals (65) who had provided them through the more information forms available on the website or social media. This is a response message to a generic information request made by the interested parties through predefined forms and, therefore, is manually responded to by our sales team in a predefined manner as well. In accordance with our internal procedures, when sending a first standard message, the BCC functionality is used to optimize workloads and allow multiple emails to be sent in a single action, without revealing the identity or email address of all recipients. However, as we mentioned, due to human error by the person who sent that particular email, ONE email address was included in the CC field instead of BCC." This address belongs to the claiming party.

2. Statement regarding the affected data as follows:

- 64 individuals who received the email were able to view the email address of the claiming party.
- The claiming party was able to view the email addresses of those who replied to the email sent by WALLBOX using "reply all" and without deleting the address ***USUARIO.2@gmail.com, which occurred in 4 emails. Since it was a response sent by the interested parties, the claiming party was also able to view the names and surnames of those individuals (if they included truthful information when registering for the corresponding email services).

3. Statement regarding the possible consequences for the affected individuals, stating that “considering the potential affected information, we believe that there can hardly be any real consequences. No relevant information has been leaked beyond email accounts (2 generic @gmail.com accounts and 2 that appear to be professional) and potentially names and surnames, so we do not consider the existence of relevant consequences, beyond potential identity theft or phishing that could equally be carried out through invented or random emails, since at no time have any of the affected individuals obtained any other type of information than the email address.” Thus, they indicate that “As can be seen in the report submitted to this Agency, we believe that the risk associated with the incident was insufficient to consider it a breach that should be reported to the supervisory authority.”

4. They allege the application of the “Guidelines for the management and notification of security breaches” published by the AEPD and the ISMS, in collaboration with the National Cryptologic Center and Incibe, which in its section 9.3 states: “Notification to the Supervisory Authority will not be necessary when the data controller can demonstrate, in a verifiable manner, that the breach of personal data security does not pose a risk to the rights and freedoms of natural persons.”

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5. Regarding the lack of notification of the breach to the AEPD, they declare the following:

“Following the criteria of the illustrative examples included by the AEPD and the ISMS in said guide, for decision-making related to the notification of security breaches to the control authority, and which WALLBOX considers reasonable and current, it can be concluded that the incident in question did not have sufficient relevance to be reported to the authority since, moreover, (i) it was not a cyber attack, (ii) no implemented security measures failed, and (iii) there were planned and implemented security measures throughout 2022 that mitigate the possibility of this case happening again in the future.”

6. Regarding the communication of the breach to the affected individuals, they declare that “In the same way as in the previous case, WALLBOX decided not to communicate the incident to the affected individuals considering that it was not a particularly relevant incident for the privacy of the data subjects nor did it jeopardize their freedoms and rights in any way. Furthermore, it should be noted that using the AEPD's own RGPD Breach Communication tool, the result it yields is ‘It would not be necessary to communicate the security breach to the affected individuals,’ which is consistent with the risk assessment carried out by WALLBOX, and the reason why nothing was communicated to the affected individuals.”

7. Indication that before the incident, the following security measures had been applied:

“(…)”

8. Indication that, as a result of the present case, the following improvements have been implemented:

“(…)”

9. Copy of the report on this security incident which includes, among other sections, the following:

- the “Risk Analysis for the rights and freedoms of the data subjects” and the “Risk Analysis for the right to data protection,” with the result that the risk is LOW.
- the security measures that were applied before the incident
- the security measures applied after the incident.
- the assessments of the necessity to notify the incident to the AEPD, where the use of the assessment described in the “Guide for the Management and Notification of Security Breaches” published by the AEPD is noted, obtaining a score of 6 points and a qualitative circumstance, which indicates that it is not a sufficient condition to notify the breach to the AEPD nor to communicate the breach to the affected individuals.
- the “Assessment of the need for communication to the data subjects,” where it is indicated that the criteria of the AEPD's online tool “RGPD Breach Communication” have been followed, obtaining that “There is no need to communicate the security breach to the data subjects.”

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CONCLUSIONS

1. The complainant received an email that was addressed to 64 WALLBOX customers. The rest of the customers were in blind copy, so they could not see their email addresses. This has led to the knowledge of the following personal data by WALLBOX customers:

- If one of those 64 customers replied to all recipients of the email, the complainant would receive an email from that customer in which the email address of that customer appeared as the sender and the pseudonym of that email address (which, in many cases, coincides with the name and surname of the email address owner). According to statements from the complainant, this occurred with 4 customers.
- The 64 customers to whom the email was addressed received within the email (in the "CC" field of the email header) the email address of the complainant and their pseudonym.

2. The complainant indicates that they have informed the 4 customers from whom they received emails that this situation has occurred.

3. WALLBOX has conducted an assessment of the necessity to notify the breach to the AEPD and the necessity of communicating the breach to the affected individuals following the former "Guide for the Management and Notification of Security Breaches" from 2018 prepared by the AEPD and ISMS Forum Spain. WALLBOX provides evidence that it has conducted this assessment following Annex III of this guide, resulting in the conclusion that neither notification to the AEPD nor communication to the affected individuals was necessary.

SIXTH: According to the report obtained from the AXESOR tool on April 13, 2023, WALLBOX is a "Group Subsidiary" type company with a turnover in 2021 of €77,079,844 and 542 employees.

SEVENTH: On May 31, 2023, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the RGPD, on that same day, this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and motivated objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.5 of the LOPDGDD.

Within the timeframe for this purpose, the interested control authorities did not submit relevant and motivated objections regarding this, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the RGPD.

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Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since WALLBOX collects and retains, among others, the following personal data of natural persons: name and surname and email address, among other processing activities. WALLBOX carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR. Moreover, this is a cross-border processing, given that WALLBOX has its main establishment in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23), regarding the competence of the lead supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or processor shall be competent to act as the lead supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, WALLBOX has its main establishment in Spain, so the Spanish Agency for the Protection of Data is competent to act as the lead supervisory authority.

Article 4, paragraph 12 of the GDPR broadly defines “personal data breaches” (hereinafter, security breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

In this case, there is a personal data breach under the circumstances mentioned above, categorized as a confidentiality breach, as an email was sent without concealing the email address of the complaining party.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR. On the other hand, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which regulate the security of processing, the notification of a personal data breach to the supervisory authority, and the communication to the data subject, respectively.

III

Principle of integrity and confidentiality

Article 5.1.f) “Principles relating to processing” of the GDPR establishes:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures (“integrity and confidentiality”).”

In this case, it is noted that the personal data of the complaining party, contained in WALLBOX's database, were improperly exposed to third parties by sending an email without concealing their address. Furthermore, the complaining party was able to access the names and surnames and email addresses of 4 data subjects who responded to the first message in question using the reply-all option. As evidenced in the file, an email was manually sent to 65 people in response to a generic information request from the data subjects, and the email address of the complaining party was included in the CC field and not BCC, making it accessible to those other 64 people. Additionally, 4 of these individuals responded to the complaining party, allowing them to access their names and surnames and email addresses.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement attributable to WALLBOX for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the statute of limitations, Article 72 “Very Serious Violations” of the LOPDGDD states:

“1. In accordance with Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year statute of limitations: violations that constitute a substantial breach of the articles mentioned therein, and in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

V

Proposal for sanction for the violation of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- The nature, severity, and duration of the violation, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (paragraph a): for exposing the email address of the complainant to 64 other individuals and for having shared with the complainant the names, surnames, and email addresses of approximately 4 individuals.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the violation committed by breaching the provisions of Article 5.1.f) of the GDPR, allows for an initial sanction of €5,000 (five thousand euros).

VI

Security of processing

Article 32 “Security of processing” of the GDPR states:

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“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and

organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

In this case, at the time of the breach, it has not been demonstrated that WALLBOX had appropriate measures in place to prevent the sending of emails without using the BCC functionality, nor had special diligence been exercised when carrying out mass email sends.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute a violation attributable to WALLBOX for breaching Article 32 of the GDPR.

VII

Classification of the violation of Article 32 of the GDPR

If confirmed, the aforementioned violation of Article 32 of the GDPR could constitute the commission of the violations classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

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“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the data controller and the data processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)”

For the purposes of the statute of limitations, Article 73 “Serious Offenses” of the LOPDGDD states:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679. (...)”

VIII

Proposal for sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered (paragraph a): for not having the appropriate measures to prevent emails from being sent that include recipients' addresses without blind carbon copy, which can result in other recipients accessing their contact data and potentially sharing more data of the recipients when replying to all, directly affecting 5 parties, exposing the contact data of the complainant to 64 other

people and allowing the complainant to access the name and email address of 4 other individuals, and potentially all their clients (more than 6,000 per month, according to <https://www.computing.es/casos-d-e-exito/wallbox-se-adelanta-a-las-necesidades-de-un-ciudadano-mas-sostenible/>).

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- Negligence in the infringement (paragraph b): WALLBOX's actions have been severely negligent in that, having been aware of the situation, the complainant was told that nothing would happen, but there is no record that following the complainant's response, the breach in question was investigated and a solution was implemented to prevent such situations from recurring. In fact, the report submitted to this Agency was prepared precisely because an information request was made, but there is no record that prior to this Agency's intervention, the company had taken actions to analyze what occurred or to adopt preventive or mitigating measures for the possible effects.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 32 of the GDPR, allows for an initial sanction of €3,000 (three thousand euros).

IX

Imposition of measures

If the infringement is confirmed, it may be agreed to impose on the data controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, without prejudice to what is established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Furthermore, the measures that may be adopted in the resolution that concludes the procedure, in relation to security measures, will apply in all countries of the European Union where WALLBOX operates.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the opening of a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Data Protection Agency,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against WALL BOX CHARGERS S.L., with NIF B66542903, for the alleged infringement of Articles 5.1.f) and 32 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR, respectively.

SECOND: TO APPOINT F.F.F. as the instructor and G.G.G. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the documentation from the IMI that has led to the preliminary investigation actions, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the preliminary actions prior to the initiation of this sanctioning procedure and the documentation from the IMI regarding the draft decision.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the

Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

- For the alleged infringement, classified in Article 83.5 of said regulation, an administrative fine of 5,000.00 euros.
- For the alleged infringement, classified in Article 83.4 of said regulation, an administrative fine of 3,000.00 euros.

FIFTH: TO NOTIFY this agreement to WALL BOX CHARGERS S.L., with NIF B66542903, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If it does not submit allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 6,400.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 6,400.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 4,800.00 euros.

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In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (6,400.00 euros or 4,800.00 euros), it must make the payment by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On July 13, 2023, the respondent has proceeded to pay the sanction in the amount of 4,800 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), grants the Director of the Spanish Agency for the Protection of Data the authority to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the inappropriateness of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202204552, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to WALL BOX CHARGERS S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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